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Supreme Court, U.S.
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No. 95-879

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In The

Supreme Court of the United States

October Term, 1995

THE CITY OF EDMOND, a municipal corporation, and RANDEL SHADID, in his capacity as Mayor of the City of Edmond, and CHARLES LAMB, GARY MOORE, RON MERCER and KAY BICKHAM in their official capacities as members of the City Council of the City of Edmond, Oklahoma,

Petitioners,

vs.

DR. WAYNE ROBINSON, CURTIS BATTLES, WENDELL MILLER, BARBARA ORZA, and MARTIN FELDMAN,

Respondents.

Petition For Writ Of Certiorari To The United States Court Of Appeals For The Tenth Circuit

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED FOR REVIEW

1. Certiorari should be granted to determine whether a governmental seal containing representations which include a clearly defined religious symbol in a historic or other secular context *per se* violates the First Amendment to the United States Constitution.

2. Certiorari should be granted to resolve the conflict among the Circuits relative to whether the First Amendment to the United States Constitution prohibits a governmental seal from containing any clearly defined religious symbols, regardless of the setting.

PARTIES TO THE PROCEEDING

Petitioners, the City of Edmond, Oklahoma, Randel Shadid in his official capacity as the mayor of the City of Edmond, and Charles Lamb, Gary Moore, Ron Mercer and Kay Bickham in their official capacities as members of the City Council of the City of Edmond, were Defendants in the lower court proceeding before the United States District Court for the Western District of Oklahoma and were Appellees before the United States Court of Appeals for the Tenth Circuit. Respondents, Dr. Wayne Robinson, Curtis Battles, Wendell Miller, Martin Feldman, and Barbara Orza, are individuals who, at the time of the filing of this action in the lower court, either lived or worked in Edmond, Oklahoma. They were Plaintiffs in the lower court proceedings and Appellants before the United States Court of Appeals for the Tenth Circuit. There are no other parties to this action.

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PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT

Petitioners respectfully petition this Court to issue a writ of certiorari to the United States Court of Appeals for the Tenth Circuit to review the October 17, 1995 opinion and judgment of that Court.

OPINIONS BELOW

On October 17, 1995, the United States Court of Appeals for the Tenth Circuit issued its opinion reversing the decision of the United States District Court for the Western District of Oklahoma. The opinion of the Tenth Circuit is reproduced at pages 1a through 19a of the Appendix to this Petition. The Tenth Circuit's opinion was recommended for publication. The memorandum opinion of the District Court was not published but is reproduced at pages 20a through 26a of the Appendix to this Petition.

STATEMENT OF JURISDICTION

Petitioners seek review of the opinion of the United States Court of Appeals for the Tenth Circuit and its judgment of October 17, 1995. That judgment reversed and remanded the District Court's determination with respect to the constitutionality of the municipal Seal of the City of Edmond, Oklahoma. A stay of mandate was issued by the Tenth Circuit Court of Appeals on November 6, 1995, pending petition to this Court for writ of

certiorari. *See* Order at pages 27a through 29a of the Appendix to this Petition. Petitioners invoke the certiorari jurisdiction conferred on this Court by 28 U.S.C. § 1254(1).

CONSTITUTIONAL AMENDMENT INVOLVED

The First Amendment to the United States Constitution provides in relevant part:

> Religious and Political Freedom.
>
> Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof . . . .

STATEMENT OF THE CASE

At issue in this case is the constitutionality of the official Seal of the City of Edmond, Oklahoma, and, by application, of the governmental seals of hundreds of cities and counties throughout the United States. The Seal of Edmond, Oklahoma, is a circular design divided into four sections. Each of these quadrants contains a representation of an aspect of Edmond's history and heritage that significantly contributed to the City's historical development. The Seal depicts a covered wagon commemorating the Land Run of April 22, 1889, the day Edmond was settled. A train and oil well are depicted which represent the importance of Santa Fe Railroad's "Edmond Station" and the oil industry in early Edmond. The left quadrant of the Seal depicts the Old North Tower

on the campus of the University of Central Oklahoma in Edmond, where the *first* classes of higher education in the Oklahoma Territory were conducted. The right quadrant contains a cross, representing the historical significance of early churches in Edmond (all of which happen to have been Christian). St. John the Baptist Catholic Church in Edmond was the *first* church established in the Oklahoma Territory after the Land Run. In the center of the Seal there are two clasped hands. The Seal also contains the motto "A Great Place to Grow." A copy of Edmond's Seal is found at p. 19a in the Appendix to this Petition.

At trial, the undisputed evidence showed that in 1965 the City Officials who selected the design of the Seal did so with the express and specific intent of symbolizing the unique history and heritage of Edmond. The historical collage would be incomplete if any of its elements were removed. There was absolutely no evidence presented at trial that the Seal was adopted for the purpose of promoting religion or proselytizing the citizens of Edmond.

Respondents each lived or worked in Edmond, Oklahoma, at the time the action was filed. The action was filed under 42 U.S.C. § 1983, invoking the District Court's federal question jurisdiction conferred at 28 U.S.C. § 1331. Mr. Feldman is a member of the Jewish faith. The remaining Respondents are members of Respondent Wayne Robinson's Unitarian congregation. The evidence at trial showed the Edmond City Seal was used without incident or question from 1965 until 1992 when Respondents and the ACLU demanded that the cross be removed from the Seal. Respondents' testimony at trial showed, and they

for the most part admitted, that they exhibit unique sensitivities with respect to the personal offense they claim to experience at the sight of the cross on the City Seal.

The District Court relied on this Court's three-prong test articulated in *Lemon v. Kurtzman*, 403 U.S. 602, 91 S.Ct. 2105, 29 L.Ed.2d 745 (1971). The lower court found that the Seal was adopted for the proper purpose of identifying City property and that there was no entanglement of government with religion. The lower court determined, based on the evidence at trial, that the average observer of the City Seal perceives it to be a representation of the City's historical foundations and does not perceive it as conveying a message of governmental endorsement or advancement of religion. From 1965 until the ACLU targeted Edmond's Seal in 1992, there was no controversy regarding the Seal. The evidence showed that whatever controversy now exists regarding the Seal was caused by Respondents and the ACLU.

The *only* witnesses who testified that they perceived the City Seal to endorse Christianity were Respondents. These individuals, whose demeanor and appearance was observed by the trial court, expressed their very strong feelings that any religious symbol, including the "Eye of God" that appears on one dollar bills and the phrase "In God We Trust" that appears on U.S. coins, have no place on any government property and violate the Establishment Clause. Respondents also admitted that they had lived and/or worked in Edmond for a number of years without even noticing that the Seal included among its representations a depiction of a cross.

The District Court, after a two-day trial, found that the evidence showed that an average observer would not perceive that the Seal had the effect of advancing or inhibiting any religion. The District Court determined that the average observer would recognize the Seal for just what it is – a celebration of the history and heritage of Edmond, Oklahoma. *See* Memorandum Opinion at p. 24a in the Appendix to this Petition. The lower court found, "Religion is a part of Edmond's history as are railroads, covered wagons, schools and the land run. The First Amendment prohibits the establishment of religion – it does not mandate that government deny or ignore its existence." *Id.*

The Tenth Circuit Court of Appeals reversed the District Court's judgment, finding that the presence on the Seal of a "visible and clearly defined religious image" inescapably leads to the conclusion that the Establishment Clause of the First Amendment to the United States Constitution has been violated.

Petitioners now seek this Court's review.

REASONS FOR GRANTING THE WRIT

I.

CERTIORARI SHOULD BE GRANTED BECAUSE THE OPINION OF THE TENTH CIRCUIT COURT OF APPEALS ESTABLISHES AN UNCONSTITUTIONAL BRIGHT-LINE TEST IN FIRST AMENDMENT CASES THAT HAS BEEN REJECTED BY THIS COURT.

This case involves important questions having broad ramifications to myriad governmental bodies whose seals

include visible and clearly defined religious symbology. According to the Tenth Circuit's opinion, visible and clearly defined religious symbols simply cannot withstand constitutional scrutiny and therefore must be removed from governmental seals. However, this Court has never been willing to establish such a bright-line test. In fact, throughout Establishment Clause jurisprudence, one dominant theme has emerged – that is, in cases regarding the interpretation of the Establishment Clause, no bright-line test can *or should* be applied. Although this Court has wrestled with the interpretation of the Clause in various applications, this Court has consistently held that the question of whether a governmental action violates the Establishment Clause depends on all of the circumstances of the particular case. As this Court stated in *Lynch v. Donnelly*, 465 U.S. 668, 678-79, 104 S.Ct. 1355, 1362, 79 L.Ed.2d 604 (1984):

> [The inquiry in each Establishment Clause case] calls for line-drawing; no fixed, *per se* rule can be framed . . . . The line between permissible relationships [between government and religion] and those barred by the Clause can [not] be straight and unwavering . . . . The Clause erects a "blurred, indistinct and variable barrier depending on all the circumstances of a particular relationship." *Lemon*, 403 U.S. at 614, 91 S.Ct. at 2112.

While the construction of this variable barrier may be difficult, this Court has emphasized that governmental actions must be considered in the context of the "particular physical setting" of the challenged action. *See County of Allegheny v. American Civil Liberties Union*, 492 U.S. 573, 595, 109 S.Ct. 3086, 3102, 106 L.Ed.2d 472 (1989). The

inquiry is "what viewers may fairly understand to be the purpose of the display." *Id.* This inquiry *turns* on the context in which the contested object appears. *County of Allegheny*, 492 U.S. 573, 595, 109 S.Ct. 3086, 3102. "Every government practice must be judged in its unique circumstances to determine whether it [endorses] religion." *Lynch v. Donnelly*, 465 U.S. 668, 694, 104 S.Ct. 1355, 1370 (1984).

The decision of the Tenth Circuit in this case in reality tacitly rejects this Court's requirement that the challenged activity be viewed in context. Instead, the Tenth Circuit states:

> While we acknowledge that each case must turn on its own facts, and that the particular context and setting of a particular governmental seal or logo is relevant to its fate when challenged under the Establishment Clause, we decline defendants' invitation to carefully and minutely distinguish the Edmond seal from the Bernalillo County seal based upon the particular dimensions of the crosses in the two seals or the secular or non-secular nature of the other elements of the seal . . . . *We too decline to hold that some visible and clearly defined religious images are permissible while other identically visible religious images are not.*

See Opinion at pp. 16a-17a (emphasis added). While initially appearing to acknowledge that there is a requirement that each case be determined on its own facts, the Tenth Circuit went on to create a new test for constitutionality of governmental seals that calls for no such factual determination. That is, according to the Tenth Circuit, if the average observer can recognize the seal as

containing a symbol which has religious meaning, the Establishment Clause is violated.[1]

The effects test in *Lemon* requires that the Court determine whether the challenged activity has the effect of endorsing or advancing religion. No such determination is required by the Tenth Circuit's holding. Under the Tenth Circuit's decision, the only determination necessary is whether the religious symbol is a familiar symbol that is visible and clearly defined. No inquiry is necessary into the effect of the seal, the perception of the average observer, or whether the seal endorses or advances religion. Rather, the Tenth Circuit's opinion requires that all familiar religious symbols be excised from governmental seals, regardless of the particular physical setting.

In other words, the Tenth Circuit holds that governmental seals may celebrate history and heritage as long as the history and heritage do not involve religion. This rigid position has been expressly rejected by this Court. In *Lynch,* this Court provided a long list of references to religious symbology included in our nation's foundational institutions. *Lynch v. Donnelly,* 465 U.S. 676-77, 104

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[1] The Tenth Circuit distinguished the Latin cross, a "very familiar religious symbol," from the LDS (Mormon) church at issue in its opinion in *Foremaster v. City of St. George,* 882 F.2d 1485 (10th Cir. 1989), *cert. denied,* 495 U.S. 910, 110 S.Ct. 1937, 109 L.Ed.2d 300 (1990), on the ground that the LDS temple is a less familiar religious symbol than is the Latin cross. Therefore, the Circuit Court explained that it properly remanded *Foremaster* for trial on the issue of the average observer's perception. Opinion at p. 12a n.9. The implication is that no trial is necessary when the religious image is "very familiar."

S.Ct. at 1360-61. This Court noted, for example, that references to our religious heritage are found in the national motto ("In God We Trust") as set forth on this nation's currency as well as in the language of the Pledge of Allegiance to the American flag. *Id.* To allow cities to commemorate all aspects of their unique histories except those aspects related to religion represents hostility toward religion that runs directly counter to Establishment Clause jurisprudence. *See Lee v. Weisman,* 505 U.S. 577, 112 S.Ct. 2649, 120 L.Ed.2d 467 (1992); *Zorach v. Clauson,* 343 U.S. 306, 314, 72 S.Ct. 679, 684, 96 L.Ed. 954 (1952); *Illinois ex rel. McCollum v. Board of Education,* 333 U.S. 203, 211, 68 S.Ct. 461, 465, 92 L.Ed. 649 (1948). Justice O'Connor pointed out in her concurring opinion in *County of Allegheny v. American Civil Liberties Union,* 492 U.S. 573, 623, 109 S.Ct. 3086, 3117 (1989), that the reason this Court has avoided bright-line tests such as that adopted by the Tenth Circuit is because to draw lines "which entirely sweep away all government recognition and acknowledgement of the role of religion in the lives of our citizens [would] exhibit not neutrality but hostility to religion." Similarly, Justice O'Connor opined in *Board of Ed. of Kiryas Joel Village School District v. Grumet,* ___ U.S. ___, 114 S.Ct. 2481, 2499, 129 L.Ed.2d 546 (1993), "Experience proves that the Establishment Clause, like the Free Speech Clause, cannot easily be reduced to a single test."

Further, had the rationale of the Tenth Circuit been applied in *County of Allegheny,* neither the creche nor the menorah at issue in that case could have withstood judicial scrutiny. The menorah is a visible and clearly defined symbol of the Jewish faith. Under the Tenth Circuit's

rationale, its presence in the City's display would have violated the Establishment Clause.

This Court, however, did not find that the menorah violated the Constitution. Rather, the Court examined the setting, including the secular symbols in the display as a whole and the written message accompanying the display, to determine that the average observer would appreciate that the display was an acknowledgement of the cultural diversity of the city and not an endorsement of the Jewish faith.

It is apparent that the primary effect of Edmond's Seal is to commemorate the history of Edmond, rather than to promote or advance any religion. This is especially true when the cross on the Seal is viewed in the context of the Seal's other clearly secular symbols and in the context of the particular physical settings where the Seal is displayed by the City, all of which are also purely secular.

The trial court carefully considered all the evidence at trial and determined that the average observer would conclude that the Seal depicts the history and heritage of Edmond. The trial court found, based on the evidence presented, that the vast majority of Edmond's citizenry, both the Christian *and* the non-Christian citizens, see the Seal for what it is – a collage of historical symbols celebrating Edmond's unique history and heritage. And that is the exact theme the Seal was designed in 1965 to represent.

The Tenth Circuit's decision has dramatic consequences not just for the City of Edmond but also for all other cities, counties and governmental bodies whose

seals contain any identifiable religious symbology. Without inquiring whether these seals as a whole have the effect of endorsing religion, these governmental bodies must immediately change their seals or risk liability for damages to any willing plaintiffs who might choose to bring suit. As a result, the Tenth Circuit's decision *requires* hostility toward religion. Under the Tenth Circuit's decision, it is only *religious* symbols that must be excised from the seals. The impact of such a decision is far-reaching and unconstitutional.

II.

THE TENTH CIRCUIT COURT OF APPEALS HAS ESTABLISHED A TEST THAT IS CONTRARY TO THE TEST ESTABLISHED BY THE FIFTH CIRCUIT AS WELL AS BY THIS COURT AND ONE THAT IS HOSTILE TOWARD RELIGION.

The opinion of the Tenth Circuit in this case is in direct conflict with the decision of the Fifth Circuit in *Murray v. City of Austin*, 947 F.2d 147 (5th Cir. 1991), *cert. denied*, ___ U.S. ___, 112 S.Ct. 3028, 120 L.Ed.2d 899 (1992).[2] In *Murray*, the Fifth Circuit Court of Appeals upheld the use of a Latin cross on the municipal seal of the City of Austin, Texas. Because the plaintiff (like Respondents here) conceded that the first and third prongs of the *Lemon* test were met, the case turned on the

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[2] The Seventh Circuit has also held similarly to the Tenth Circuit's holding. In *Harris v. City of Zion*, 927 F.2d 1401 (7th Cir. 1991), *cert. denied*, ___ U.S. ___, 112 S.Ct. 3025, 120 L.Ed.2d 897 (1992), the Court held "that sectarian religious imagery simply has no place on municipal seals." 927 F.2d at 1402. The seal found unconstitutional in *Harris* had no relationship to history.

application of *Lemon's* "effect" test. In applying the "effect" test, the *Murray* court stated:

> If we focus exclusively on the inclusion of the religious symbol, display, or practice, then every use of religious symbolism – and prayer – would fail. The plain wording of the First Amendment does not require this; nor does the Supreme Court.

Id. at 154. Thus, the Fifth Circuit held that the focus is whether the seal, taken *as a whole* and in the particular physical setting in which it is displayed, has the principal or primary effect of advancing or inhibiting religion. *Id.* at 155.

In *Murray*, the court found that, taken as a whole, the City of Austin's seal did not have the primary effect of advancing religion. Instead, the seal had the principal or primary effect of identifying city activity and property and promoting the city's unique role and history. *Id.* at 155. In fact, the court held that any perceived preference of religion by use of Austin's seal was even more remote than the Nativity Scene held constitutional in *Lynch, supra*, the menorah held constitutional in *County of Allegheny, supra*, and the legislative prayer held constitutional in *Marsh v. Chambers*, 463 U.S. 783, 103 S.Ct. 330, 77 L.Ed.2d 1019 (1983). However, if the Fifth Circuit had applied the rule announced by the Tenth Circuit in the instant action, the Austin seal would have violated the First Amendment. The visible and clearly defined Latin cross in the Austin seal would have been unconstitutional.

Contrary to the Tenth Circuit's holding, the test set out by this Court is not whether the average observer

would recognize the symbol as one that has religious significance. Before the Court can find an Establishment Clause violation, the Court must determine that an average observer would *primarily* perceive the seal as a whole as conveying a message of *government endorsement or advancement* of religion. *See Lemon v. Kurtzman, supra.*

In the case at bar, the trial court heard the evidence regarding the perceptions of the average observer. As set forth in the Statement of Facts above, it is clear that the evidence strongly suggested that the average observer, unlike Respondents, views Edmond's Seal as a historical representation of the City of Edmond. When viewed as a whole, the Seal presents a collage of the history and heritage of a community that traces its roots to the Land Run of 1889 and to the triumphs and tragedies of pioneer living. Only Respondents, who view all religious symbology as offensive and inappropriate, testified that they viewed the Seal as an endorsement of the Christian religion. The fact of the matter is that when Respondents see the Seal, they see nothing but the cross. They are unable to view the entire collage. No doubt, because of their unique sensitivities, if they viewed the *Lynch* creche in its setting, they would see nothing but the manger and would be similarly offended. However, the test of constitutionality is not based on the perceptions of the city's most hypersensitive citizens but that of an average observer.

The quadrant depicting the cross on Edmond's Seal cannot be viewed in isolation. Rather, the four quadrants of the Seal must be viewed as a whole and in the context for which they were intended. *See Lynch v. Donnelly*, 465 U.S. 668, 679, 104 S.Ct. 1355, 1362, 79 L.Ed.2d 604 (1984).

As the *Lynch* Court noted, "Focus exclusively on the religious component of any activity would inevitably lead to its invalidation under the Establishment Clause." *Id.* The City Seal, when viewed as a whole, presents a historical picture of Edmond, Oklahoma, that would be incomplete and inaccurate without the inclusion of the cross.

This Court has not yet taken the opportunity to decide a case involving the constitutionality of a governmental seal. Yet it is clear that such cases beg for guidance from this Court. The Circuits are divided in their interpretations of existing law. The lower courts have frequently been reversed because it has been so difficult to decipher the conflicting Circuit Court decisions. The Tenth Circuit has now attempted to make the determination easy by singling out *all* visible and clearly defined religious symbols as unconstitutional. However, this test itself violates the United States Constitution by requiring hostility toward religion. This Court should grant certiorari in this case to resolve the conflict among the circuits and to prevent the far-reaching application of the Tenth Circuit's recently announced rule.

CONCLUSION

The decision of the Tenth Circuit not only conflicts with the Fifth Circuit's holding but also conflicts with the previous rules announced by this Court. The issue of the constitutionality of governmental seals is one affecting hundreds of communities throughout this nation. Although creation of a bright-line test such as that offered

by the Tenth Circuit might serve to make the determination of constitutionality a simple one, it is contrary to what this Court has held, and such a test has constitutional ramifications of its own.

For these reasons, Petitioners request that this Court grant certiorari in this case.

Respectfully submitted,

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PUBLISH

UNITED STATES COURT OF APPEALS

TENTH CIRCUIT

WAYNE ROBINSON; CURTIS BATTLES; WENDELL MILLER; MARTIN FELDMAN,	)	
Plaintiffs-Appellants,	)	No. 94-6237
BARBARA ORZA,	)	
Plaintiff,	)	
v.	)	
CITY OF EDMOND, a Municipal corporation; RANDELL SHADID, individually and in his official capacity as Mayor of the City of Edmond; RON MERCER, individually and in his official capacity as a member of the City Council of the City of Edmond; KAY BICKHAM, individually and in her official capacity as a member of the City Council of the City of Edmond; and GARY MOORE, in his official capacity as a member of the City Council of the City of Edmond,	)	
Defendants-Appellees.	)	

WAYNE ROBINSON; CURTIS BATTLES; WENDELL MILLER; MARTIN FELDMAN, and BARBARA ORZA,

Plaintiffs-Appellants,

v.

CITY OF EDMOND, a Municipal corporation; RANDELL SHADID, individually and in his official capacity as Mayor of the City of Edmond; RON MERCER, individually and in his official capacity as a member of the City Council of the City of Edmond; KAY BICKHAM, individually and in her official capacity as a member of the City Council of the City of Edmond; and GARY MOORE, in his official capacity as a member of the City Council of the City of Edmond,

Defendants-Appellees.

No. 95-6008

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF OKLAHOMA
(D.C. No. CIV-93-153-R)

(Filed Oct. 17, 1995)

Michael C. Salem, Salem Law Offices, Norman, Oklahoma (Joel Carson, Carson & Mueller, Oklahoma City, Oklahoma, with him on the briefs), for Plaintiffs-Appellants.

Laura Haag McConnell, Hartzog, Conger & Cason, Oklahoma City, Oklahoma, and V. Burns Hargis, McAfee & Taft, Oklahoma City, Oklahoma (Ryan S. Wilson, Hartzog, Conger & Cason, Oklahoma City, Oklahoma, and Stephen T. Murdock, City Attorney, Edmond, Oklahoma, with them on the briefs), for Defendants-Appellees.

Michael L. Tinney, Oklahoma City, on the brief for Amicus Curiae Citizens for Keeping the Cross.

Before **ANDERSON, HOLLOWAY,** and **LUCERO,** Circuit Judges.

ANDERSON, Circuit Judge.

Plaintiffs and appellants, Dr. Wayne Robinson, Curtis Battles, Wendell Miller and Martin Feldman, appeal from the grant of judgment in favor of defendants, City of Edmond, Oklahoma, the City's mayor, Randell Shadid, and its City Council members, Charles Lamb, Gary Moore, Ron Mercer, and Kay Bickham, on plaintiffs' Establishment Clause challenge to the inclusion of a Latin or Christian cross on the City seal. They also appeal the imposition of attorneys fees and costs.[1] For the following

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[1] Appeal No: 95-6008 involves attorneys fees and costs. One additional party, Barbara Orza, is an appellant in No. 95-6008. Ms. Orza initially participated in the main case as a plaintiff, but was unavailable for trial and her claim was dismissed by the district court. She therefore did not participate in appeal No. 94-6237, involving the merits of that case. The

reasons, we reverse and remand on both the merits of this case (Appeal No. 94-6237) and on attorneys fees and costs (Appeal No. 95-6008).

BACKGROUND

At issue in this case is the official seal of the City of Edmond, Oklahoma. The circular seal contains four quadrants, of which one depicts a steam engine and oil derrick, one depicts the Old North Tower,[2] one depicts a covered wagon with the number 1889,[3] and the last quadrant depict a Christian cross. A copy of the seal appears as an appendix to this opinion.

The seal was first adopted in 1965 following a competition sponsored by the City Council and a local newspaper. A local resident, Frances Bryan, designed the seal from her two winning entries. Since 1965 the seal has been used extensively by the City, and appears on City limits signs, on City flags, on the uniforms of City police officers and firefighters, on official City vehicles, on stickers identifying City property, and in the City Council chambers. Additionally, the seal appears on each utility

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district court did assess costs and attorneys fees against her, however, and she has therefore joined appeal No. 95-6008 challenging those fees and costs.

[2] The Old North Tower is a well-known local landmark of what is now the University of Central Oklahoma. It is where the first higher education classes were conducted in the Oklahoma Territory.

[3] The significance of the covered wagon and the number 1889 is that "wagons were used in the Land Run of 1889 the day Edmond was first settled." Mem. Op. at 4; Pls.' Br., Attach 01.

bill sent out by the City, as well as on official City stationery and the Utility and Sanitation Department's newsletter. The seal has been registered as a trademark under Oklahoma law.

Plaintiffs are non-Christians who live or work in Edmond. Mr. Feldman is a Jew who lives in Edmond, Mr. Miller is a member of the Unitarian Congregation who lives and is self-employed in Edmond, Mr. Battles is a member of the Unitarian Congregation who lives in Edmond, and Dr. Robinson is the minister of the Channing Unitarian Church in Edmond. They brought this action under 42 U.S.C. § 1983, claiming that the inclusion of the Christian cross in the City seal violated the Establishment Clause and the Free Exercise Clause of the First Amendment, as well as certain provisions of the Oklahoma Constitution. They named as defendants the City, its mayor, and its City Council members. The mayor and City Council members were sued in both their official and individual capacities. Plaintiffs sought declaratory and injunctive relief, as well as nominal damages.

The district court initially granted defendants' Fed. R. Civ. P. 12(b)(6) motion to dismiss plaintiffs' claims against them in their individual capacities. It subsequently granted defendants' motion for partial summary judgment on plaintiffs' claimed deprivation of their rights under the Free Exercise Clause of the First Amendment, and on their state law claim under Article I, § 5 of the Oklahoma Constitution. After a two-day trial to the court, in which eight witnesses testified, the district court granted judgment for defendants, holding that the seal did not violate the Establishment Clause under the three-part test of *Lemon v. Kurtzman*, 403 U.S. 602, 612-13 (1971).

It also held, without explanation, that the seal was valid under the Oklahoma Constitution. Following judgment, defendants sought costs and attorneys fees, pursuant to 28 U.S.C. § 1920 and 42 U.S.C. § 1988. The district court awarded costs of $5,586.38, and denied all but $2,361.00 of attorneys fees, holding that plaintiffs' claims under the Establishment Clause and their claims against defendants in their individual capacities were not frivolous, unreasonable or without foundation. It held, however, that plaintiffs' claim under the Free Exercise Clause was without foundation, given plaintiffs' admission in their depositions that "they were completely free to exercise their respective chosen religions in the City of Edmond," Order at 3, Pls.' Br., Attach. F3, and that fees and costs were appropriately awarded to defendants for defending such a baseless claim.

On appeal, plaintiffs argue the district court erred in finding for defendants on their Establishment Clause claim.[4] They also claim error in the district court's order requiring plaintiffs to disclose *in camera* to the court a letter sent to plaintiffs by their attorney. Finally, they claim the district court erred in awarding to defendants attorneys fees and costs incurred in responding to plaintiffs' Free Exercise Clause claim, which the court held was frivolous. They in turn seek an award of attorneys fees and costs if they prevail in this appeal. Defendants seek attorneys' fees incurred in defending their award of fees and costs below.

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[4] Plaintiffs do not appeal the dismissal of their Free Exercise clause claim.

DISCUSSION

The First Amendment provides that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof. . . . " U.S. Const. amend. I. The Supreme Court generally applies the three-part test of *Lemon* when evaluating claimed violations of the Establishment Clause.[5] Thus, we continue to apply it to such cases, while recognizing that "[a]lthough the Supreme Court has been unwilling to endorse *Lemon* as the 'be-all' and 'end-all' in Establishment Clause cases, it has continued to apply it almost exclusively." *Friedman v. Board of County Comm'rs*, 781 F.2d 777, 780 (10th Cir. 1985) (en banc), *cert. denied*, 476 U.S. 1169 (1986).

Government action violates the Establishment Clause under *Lemon* if it fails to meet any of the following conditions: (1) it must have a secular purpose; (2) its principal or primary effect must be one that neither advances nor inhibits religion; and (3) it must not foster excessive government entanglement with religion. *Lemon*, 403 U.S. at 612-13. The first and second parts of the test have been modified, or at least recast, to ask whether the challenged government action was intended to endorse, or has the effect of endorsing, religion. *County of Allegheny v. American Civil Liberties Union*, 492 U.S. 573, 592-93 (1989); *Lynch v. Donnelly*, 465 U.S. 668, 687-94

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[5] While the *Lemon* test has been criticized by many, including some members of the Supreme Court, and has been declared dead by Justice Scalia, *Lamb's Chapel v. Center Moriches Union Free Sch. Dist.*, 113 S.Ct. 2141, 2149-50 (1993), the Supreme Court has specifically declined to overrule it. *See id.* at 2148 n.7; *see also Lee v. Weisman*, 112 S.Ct. 2649, 2655 (1992).

(1984) (O'Connor, J., concurring); *Foremaster v. City of St. George*, 882 F.2d 1485, 1491 (10th Cir. 1989), *cert. denied*, 495 U.S. 910 (1990).

Plaintiffs concede that the main issue in this case is whether the City seal violates the second part of the *Lemon* test: whether its primary effect is to advance or inhibit religion, or, in endorsement test terms, whether it conveys or attempts to convey the message "that religion or a particular religious belief is *favored or preferred*." *Allegheny*, 492 U.S. at 593 (quoting *Wallace v. Jaffree*, 472 U.S. 38, 70 (1985) (O'Connor, J., concurring in the judgment)).[6] In applying this "effects" test, we must consider the " 'particular physical setting' " of the challenged action. *Foremaster*, 882 F.2d at 1491 (quoting *Allegheny*, 492 U.S. at 597). Further, we evaluate the effect "by an objective standard, which looks only to the reaction of the average receiver of the government communication or average observer of the government action." *Friedman*, 781 F.2d at 781; *see also*, *Foremaster*, 882 F.2d at 1491 ("We inquire what an average observer would perceive when viewing the action of the City.").

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[6] Standing is of course always necessary in an Establishment Clause case, and it is sometimes a difficult issue. No one in this case disputes plaintiffs' standing. Under our case law, plaintiffs clearly have standing. *See Foremaster*, 882 F.2d at 1490 ("Foremaster's allegations of direct, personal contact suffices as non-economic injury.").

Further, because we hold that the City seal violates the second (effects or endorsement) part of the *Lemon* test, we need not address plaintiffs' arguments that the seal also violates the first (purpose) part of the test or the third (entanglement) part of the test. Failure to satisfy any of the three *Lemon* test prongs suffices to support an Establishment Clause violation.

Other cases, including two from our own circuit, have considered whether a government seal or logo containing an unmistakably religious image violates the Establishment Clause. All but one of those cases have held that it does. Finding no principled distinction between those cases and this one, we likewise hold that the Edmond City seal violates the Establishment Clause.

We first addressed this issue in *Friedman*, in which the Bernalillo County seal containing a Latin cross and the Spanish motto "CON ESTA VENCEMOS" was challenged on Establishment Clause grounds. Like the City seal here, the Bernalillo County seal had been used for many years, and used pervasively, appearing on "county documents, stationery, motor vehicles, and the shoulder patches of sheriff's department officers." *Friedman*, 781 F.2d at 779. The district court found no Establishment Clause violation, concluding that the cross was simply an historical depiction of the importance of the Catholic Church in settling the southwest. On appeal, we reversed, holding that under either a clearly erroneous or a de novo standard of review,[7] the lower court erred.

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[7] We acknowledged in *Friedman* that there is some ambiguity concerning the standard for our review of "constituitonal facts" like a district court's findings on each part of the *Lemon* test. We observed that conflicting language in the Supreme Court's *Lynch v. Donnelly*, 465 U.S. 668 (1984), decision suggested either a clearly erroneous or a de novo standard of review could apply, while the Supreme Court's subsequent decision in *Bose Corp. v. Consumers Union of United States, Inc.*, 466 U.S. 485, 508, 509 (1984), held that the clearly erroneous standard did not apply to appellate review of a finding of malice in a First Amendment case. Because we concluded in *Friedman* that the lower court's findings and conclusions were wrong

In reaching that conclusion, we considered "the seal's composition and use." *Id.* at 782. We noted that the cross was prominent, as "the only visual element on the seal that is surrounded by rays of light." *Id.* Further, the impression conveyed by the cross we described as follows:

> A rabbi testified that the seal suggested to him that there was an "officialness" about Christianity in the state and county. In addition, he pointed out that the cross had at times symbolized outright oppression and persecution of Jewish people. It cannot be denied, as one

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under either standard, we did not decide "which standard applies under the Establishment Clause." *Friedman*, 781 F.2d at 779-80 n.2. Because we reach that same conclusion here – that the district court erred under either standard – we too decline to decide which standard applies. We do note, however, that several other circuits appear to hold that a de novo standard applies. *See Harris v. City of Zion*, 927 F.2d 1401, 1402 n.1 (7th Cir. 1991), ("It is well-settled that whether a government display violates the first amendment is indeed a question of law. Thus on review we examine the issues *de novo* with 'no deference to the district court's resolution.' ") (quoting *Mather v. Village of Mundelein*, 864 F.2d 1291, 1292 (7th Cir. 1989) (other citations omitted)), *cert. denied*, 112 S. Ct. 3054 (1992); *New Life Baptist Church Academy v. Town of East Longmeadow*, 885 F.2d 940, 941 (1st Cir. 1989) (" 'First Amendment questions of "constitutional fact" compel [the] Court's de novo review.' ") (quoting *Rosenbloom v. Metromedia, Inc.*, 403 U.S. 29, 54 (1971) (plurality opinion) (citations omitted)), *cert. denied*, 494 U.S. 1066 (1990); *Northwest Indian Cemetery Protective Ass'n v. Peterson*, 795 F.2d 688, 691 n.3 (9th Cir. 1986) ("We review de novo the question whether the Indian plaintiffs have a valid first amendment claim."), *rev'd on other grounds*, 485 U.S. 439 (1988); *Bender v. Williamsport Area Sch. Dist.*, 741 F.2d 538, 542 n.3 (3d Cir. 1984), *vacated for lack of standing*, 475 U.S. 534 (1986).

> amicus brief argues, that the cross probably would have a similarly threatening connotation for a Lebanese Moslem or Northern Irish Protestant. We are compelled to draw the same conclusion with regard to the reactions of Native Americans who reside in Bernalillo County. The seal certainly does not memorialize their "Christian heritage" but rather that of those who sought to extinguish their culture and religion.

Id. at 781-82.

In addition to the particular message conveyed by the actual elements of the seal, we also considered its pervasiveness: "the seal . . . pervades the daily lives of county residents. It is not displayed once a year for a brief period . . . [but r]ather it appears on all county paper work, on all county vehicles, even on county sheriff's uniforms." *Id.* at 782. We therefore concluded that the seal violated the Establishment Clause.[8]

We faced a similar challenge to a city seal in *Foremaster*, in which the challenged seal contained a depiction of the St. George, Utah, temple of the Church of Jesus Christ of Latter-Day Saints ("LDS Church"). The district court granted summary judgment to the city, finding that the illustration of the St. George temple did not have the primary effect of endorsing the LDS Church. We reversed and remanded, finding that there was "a genuine issue of

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[8] *Friedman* was cited with apparent approval by Justice O'Connor in her concurring opinion in *Allegheny*, 492 U.S. at 629, as well as by Justice Kennedy in his opinion concurring in the judgment in part and dissenting in part. *Id.* at 661.

material fact as to what an average observer would perceive when viewing the City logo." *Foremaster*, 882 F.2d at 1491.[9]

In addition to *Friedman* and *Foremaster*, several other cases from other circuits address Establishment Clause challenges to city seals or logos. In *Harris v. City of Zion*, 927 F.2d 1401 (7th Cir. 1991), *cert. denied*, 112 S. Ct. 3054 (1992), and *Kuhn v. City of Rolling Meadows*, 927 F.2d 1401 (7th Cir. 1991), *cert. denied*, 112 S. Ct. 3025 (1992), consolidated for decision, the Seventh Circuit held that seal of the city of Rolling Meadows and the seal, emblem and logo of the city of Zion both violated the Establishment Clause. The Rolling Meadows seal contained, in one of its four quadrants, a depiction of a church that was under construction with a Latin cross in front of it. The Zion seal contained a shield on which appeared a Latin cross, a dove carrying a branch, a crown and sword, and the name "Zion." A ribbon above the shield contained the words "God Reigns." Both city seals were used extensively, on city vehicles, the city letterhead, the shoulder

[9] Defendants argue strenuously that our remand in *Foremaster* for further factual findings on what the average observer would perceive when viewing the logo clearly indicates that such an inquiry is always purely factual, and the district court's findings on that matter are only reversible if clearly erroneous. Thus, so the argument goes, we could not easily reverse the district court's findings about the average observer in this case. We are not convinced *Foremaster*'s holding reveals so much. The question of what the average observer would perceive when looking at a LDS Church temple, a less familiar religious symbol, would probably require more inquiry than the question of what the average observer would perceive when looking at a Latin cross, a very familiar religious symbol.

patches of city police offices and, in Zion, on firefighters as well, and in the City Council chambers.

Addressing first the Rolling Meadows seal, the court observed that it "is a permanent statement that is viewed year-round." *Kuhn*, 927 F.2d at 1412. Further, the seal "acts as the City's imprimatur for official correspondence, property and business." *Id*. The court rejected the city's argument that the presence of other, secular images on the seal "neutralized" any religious message conveyed by the seal. "The images on the seal are not just neutral snapshots of the community; they are charged with endorsement . . . To any observer, the Rolling Meadows seal expresses the City's approval of those four pictures of City life – its flora, its schools, its industry and commercial life, and its Christianity." *Id*. The court therefore concluded that the city seal "endorses Christianity in violation of the first amendment." *Id*. at 1413.

Turning to the Zion seal, the court found that it violated both the purpose and the effects test of *Lemon*. Finding that its indisputably religious purpose when it was originally adopted in 1902 was not diminished by a more recent decision to retain the seal for historical purposes, the court went on to conclude that the seal constituted an unconstitutional endorsement of Christianity. It also rejected Zion's argument that the seal, emblem and logo "merely commemorate the historical origins of the City." *Harris*, 927 F.2d at 1414, stating that "the City may not honor its history by retaining the blatantly sectarian seal, emblem, and logo." *Id*. at 1415. Finally, the court rejected the city's attempts to distinguish its seal from the

one our court had already held unconstitutional in *Friedman*:

> The City of Zion seeks to distinguish its corporate seal from the seal of Bernalillo County by noting that the Latin cross in the Zion seal is smaller and shares space on the seal with a crown, a scepter and a dove. We find this argument a baseless attempt at distinction.

Id.; but see Murray v. City of Austin, 947 F.2d 147, 149 (5th Cir. 1991) (upholding against Establishment Clause challenge a city insignia based upon "the family coat of arms of Stephen F. Austin, the 'father of Texas' and the person after whom the City is named," and which included a Latin cross), *cert. denied*, 112 S.Ct. 3028 (1992).[10]

Because we find no meaningful distinction between the Edmond seal and that of Bernalillo County or the cities of Zion and Rolling Meadows, we hold that

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[10] The Austin insignia appeared extensively throughout the city. The Fifth Circuit rejected the argument that "any time a municipality incorporates a religious symbol within its seal, insignia, or logo – regardless of the history, purpose, or context – the Establishment Clause is violated." *Murray*, 947 F.2d at 156. Instead, the court distinguished *Friedman* by the *Friedman* seal's

> lack of undisputed secular symbols within the seal; the accompanying phrase which translates "With This We Conquer"; the county's relatively recent expanded use of the seal; and that at least one county commissioner knew at the time that the cross represented the role of the Catholic Church in the settlement of the Southwest.

Id. at 157. Concluding that the Austin city seal "in its context, . . . does not endorse religion in any true or meaningful sense of the word 'endorsement.' " the Fifth Circuit upheld its constitutionality. *Id.* at 158.

Edmond's seal violates the Establishment Clause. Like Bernalillo County's seal, and the seals of Zion and Rolling Meadows, the cross is a prominent feature of the Edmond seal.[11] The religious significance and meaning of the Latin or Christian cross are unmistakable. Further, Edmond's use of the seal is as pervasive as the county seal in *Friedman*, and the city seals in *Harris* and *Kuhn*.

Defendants argue that the City seal is permissible because it symbolizes "the unique history and heritage of Edmond." Appellees' Br. at 6. We agree with the Seventh Circuit's rejection of the identical historical argument in *Harris:* "the City may not honor its history by retaining the blatantly sectarian seal. . . . These symbols transcend mere commemoration, and effectively endorse or promote the Christian faith." *Harris*, 927 F.2d at 1415. Such an appeal to history also failed to save the Bermalillo County seal in *Friedman*, and is indeed an argument which could always "trump" the Establishment Clause, because of the undeniable significance of religion and religious symbols in the history of many of our communities. We rejected arguments in *Friedman* that the county seal was permissible because it was not intended to advance religion, stating "[i]f the challenged practice is likely to be interpreted as advancing religion, it has an impermissible effect and violates the Constitution,

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[11] We noted in *Friedman* that the visibility of the cross was significant: "a one-color depiction in which the seal and especially the cross are not easily discernible might not pass the threshold [of impermissible joint church-state authority.]" *Friedman*, 781 F.2d at 781.

regardless of whether it actually is intended to do so" *Friedman*, 781 F.2d at 781.

Defendants further argue that the evidence in this case supports their claim that the "majority of the people in Edmond – the average, everyday Christian and non-Christian citizens" do not view the seal as endorsing religion. That is not determinative. As we observed in *Friedman*.

> It is not decisive that defendants' heraldic and historical experts, and lay witnesses who are members of Christian sects, reacted less emotionally to the seal. It is to be expected that members of Christian sects would be more comfortable with a seal endorsing their beliefs than would individuals who adhere to different beliefs. The comfort of the majority is not the main concern of the Bill of Rights.

Id. at 782. The relevant inquiry is the objective one of what the "average observer" would perceive when viewing the seal. *Foremaster*, 882 F.2d at 1491. On that issue, we must conclude that the average observer would perceive the same sort of endorsement of Christianity which we held such an observer would feel in *Friedman*, and the Seventh Circuit held such an observer would feel in *Harris* and *Kuhn*, when evaluating governmental seals with similarly distinctive crosses.

Finally, defendants attempt to distinguish the Edmond seal from the Bernalillo County seal at issue in *Friedman* by arguing that the other secular elements of the seal effectively neutralize any religious message conveyed by the cross. While we acknowledge that each case must turn on its own facts, and that the particular context

and setting of a particular governmental seal or logo is relevant to its fate when challenged under the Establishment Clause, we decline defendants' invitation to carefully and minutely distinguish the Edmond seal from the Bernalillo County seal based upon the particular dimensions of the crosses in the two seals or the secular or non-secular nature of other elements of the seal. As the Seventh Circuit stated in rejecting the identical argument in *Kuhn*.

> The images on the seal are not just neutral snapshots of the community; they are charged with endorsement . . . [R]egardless of its origins, the [city] seal does promote the selected images it depicts. To any observer, the [city] seal expresses the City's approval of those four pictures of City life – its flora, its schools, its industry and commercial life, and its Christianity.

Kuhn, 927 F.2d at 1412. We too decline to hold that some visible and clearly defined religious images are permissible while other identically visible religious images are not. "Otherwise, we judges will be immersed in the minutiae of graphic design, our rulers and calipers in hand, scrutinizing each symbol for acceptable proportion, color and gloss. With no principled basis for distinguishing one seal from the next, our opinions will be fastidiously fact-bound and our precedent hopelessly abstract." *Murray*, 947 F.2d at 170 (Goldberg, J., dissenting).

In sum, we hold that under applicable Tenth Circuit and Supreme Court authority, the Edmond City seal violates the Establishment Clause. The district court erred in

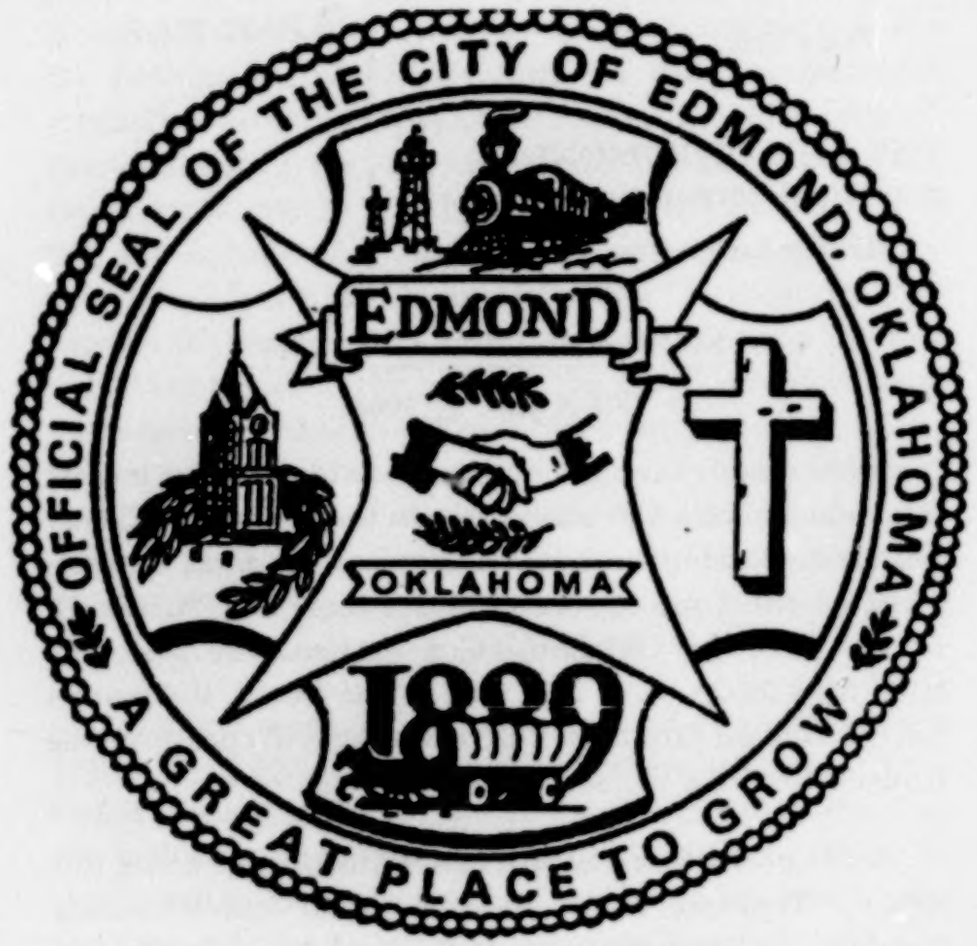
concluding otherwise. We therefore reverse and remand for further proceedings consistent with this opinion.[12]

Because we reverse and remand this case, and find in favor of plaintiffs, plaintiffs are now the prevailing parties for purposes of the attorneys fees provisions of 42 U.S.C. § 1988. This casts in a new light the determination of any fee awards in this case. We accordingly remand the issue of attorneys fees and costs to the district court for a redetermination in light of this opinion.

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[12] Plaintiffs have additionally argued that the district court erred in requiring *in camera* production of a letter from plaintffs' counsel to plaintiffs, in violation of the attorney/client privilege. As defendants point out, plaintiffs identify no prejudice or damage stemming from this claimed error, and they fail to address the issue at all in their reply brief. We accordingly decline to address the issue.

APPENDIX "A"



IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF OKLAHOMA

DR. WAYNE ROBINSON, CURTIS BATTLES, WENDELL MILLER, BARBARA ORZA and MARTIN FELDMAN,	)	
Plaintiffs,	)	**CIV-93-153-R**
v.	)	
THE CITY OF EDMOND, a municipal corporation, et al.,	)	
Defendants.	)	

MEMORANDUM OPINION

(Filed Jun. 1, 1994)

This case is brought by five individuals who protest the inclusion of a Christian cross in the seal of the City of Edmond, Oklahoma as in violation of the First Amendment to the United States Constitution and Article II, Section 5 of the Oklahoma Constitution. The case was tried May 24-25, 1994 in a trial to the Court, the parties having waived jury trial. The following will constitute the Court's findings of fact and conclusions of law.

Four of the five Plaintiffs have standing to bring this action.[1] They are taxpayers in Edmond and ultimately their tax dollars have gone toward payment for the seal in question. Additionally, the seal has affected the behavior of at least some of the Plaintiffs. *See Foremaster v. City*

[1] No evidence was presented in behalf of Plaintiff Barbara Orza and her claim is dismissed.

of St. George, 882 F.2d 1485, 1489-91 (10th Cir. 1985), *cert. denied*, 495 U.S. 910, 110 S.Ct. 1937, 109 L.Ed.2d 300 (1990).

In 1965 the City Council for the City of Edmond decided that it wanted a seal to identify city property and personnel. Through a local newspaper, a contest was run for persons to submit drawings for the proposed seal. According to a newspaper article at the time "contest entries should reflect the factors which make Edmond the finest small city in Oklahoma – her birth in the Run of '89, the college and the culture, commerce, agriculture and downright friendliness of the city." A local resident, Francis Bryan, submitted two entries which won the first and third prizes in the contest. The City Council was not entirely satisfied with the first place entry and asked Mrs. Bryan to combine her two submissions into a seal which reflected the history of Edmond. She did so and ultimately came up with the design which became the Edmond Seal. See Appendix A. The seal is used on city property, stationery and uniforms.

The seal was used without incident or question from 1965 until 1992 when several members of a local Unitarian Church including its pastor protested to the City the inclusion of the Christian cross in the seal. Three of the Plaintiffs are Unitarian and one is Jewish. Ultimately, the City refused to remove the cross from the seal and this case ensued.

The Edmond seal contains four quadrants. One quadrant depicts a steam engine and oil derrick, another Old North Tower, another a covered wagon and the number 1889 and one quadrant depicts the Christian cross.

As indicated, the Plaintiffs contend that the inclusion of the cross in the official seal constitutes such promotion of the Christian faith that it violates the Establishment Clause of the Constitution.

There have been a number of cases in several circuits which have dealt with the use of religious symbols in official city seals. As the seals have varied, so have the results. *See Gonzalez v. North Township of Lake County,* 4 F.3d 1412 (7th Cir. 1993); *Murray v. City of Austin,* 947 F.2d 147 (5th Cir. 1991), *cert. denied,* ___ U.S. ___, 112 S.Ct. 3028, 120 L.Ed.2d 899 (1992); *Harris v. City of Lion,* 927 F.2d 1401 (7th Cir. 1991), *rehearing en banc denied,* 934 F.2d 141 (7th Cir. 1991), *cert. denied,* ___ U.S. ___, 112 S.Ct. 3025, 120 L.Ed.2d 897 (1992); *Friedman v. Board of County Commissioners of Bernadillo County,* 781 F.2d 777 (10th Cir. 1985), *cert. denied,* 476 U.S. 1169, 106 S.Ct. 2890, 90 L.Ed.2d 978 (1990).

In *Foremaster v. City of St. George,* 882 F.2d 1485 (10th Cir. 1989), *cert. denied,* 495 U.S. 910, 110 S.Ct. 1937, 109 L.Ed.2d 300 (1990), the Tenth Circuit last considered the inclusion of religious symbols in a city seal. In *Foremaster,* the Court applied the First Amendment analysis set out in *Lemon v. Kurtzman,* 403 U.S. 602, 91 S.Ct. 2105, 29 L.Ed.2d 745 (1971). In order to survive an Establishment Clause challenge, *Lemon* requires that government action meet these conditions: (1) it must have a secular purpose; (2) its primary effect must be one that neither advances nor inhibits religion; and (3) it must not foster an excessive government entanglement with religion. 403 U.S. at 612, 91 S.Ct. at ___, 29 L.Ed.2d at 755.

Applying the *Lemon* analysis to the present case, the Court finds that the City of Edmond seal meets all three conditions. First, the seal's purpose was and is secular. It was created for the purpose of identifying city property and personnel. The items included were for the purpose of showing Edmond's history and heritage.

Second, the Court is satisfied that the primary effect of the seal neither advances nor inhibits religion. In *Foremaster,* the Court said that the finder of fact must determine whether the depiction (the temple in the context of the St. George logo) conveys primarily a message of government endorsement and advancement of religion. 882 F.2d at 1491-92. In this regard, the Court must determine what an average observer would perceive when viewing the city seal. 882 F.2d at 1491. Although the testimony was in conflict and perception is in the eye of the beholder, the Court finds that the average observer would conclude that the seal taken as a whole primarily depicts the history and heritage of Edmond as opposed to conveying primarily a message of endorsement or enhancement of a religion.[2] Obviously, not everyone who views the seal will be completely aware of the history the seal is intended to depict. Perhaps only a historian would realize that Old North Tower is the building where the first classes of higher education were conducted in the

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[2] From the evidence the Court has heard and seen it appears that on one side there are the Plaintiffs who believe the cross conveys a message of the establishment of the Christian religion and they believe this is bad. On the other end of the spectrum are those who agree with the Plaintiffs about the message and believe this is good. The vast middle see the seal for what it is – in this instance, a collage of historical symbols.

Oklahoma Territory; or that covered wagons were used in the Land Run of 1889 the day Edmond was first settled; or that steam engines and railroads played a role in the early development of Edmond; and finally that Christian churches, including St. John's Catholic Church, which was the first church established in Oklahoma Territory, played a significant part in the history of Edmond. However, it is not necessary to be a historian to look at the seal and observe that it conveys a message of history. The cross in isolation could be seen as solely a religious symbol. But because the cross is accompanied by other depictions on the seal, the Court believes a person must reach to believe it is there for the purpose of "enhancing or inhibiting religion." Religion is a part of Edmond's history as are railroads, covered wagons, schools and the land run.[3] The First Amendment prohibits the establishment of religion – it does not mandate that government deny or ignore its existence.

In *Lynch v. Donnelly*, 465 U.S. 668, 104 S.Ct. 1355, 79 L.Ed.2d 604 (1984), in permitting the display of a creche at Christmas paid for with city funds, the Supreme Court with approval recognized that "[t]here are countless . . . illustrations of the Government's acknowledgment of our religious heritage and governmental sponsorship of graphic manifestations of that heritage." 465 U.S. at 677, 104 S.Ct. at ___, 79 L.Ed.2d at 612. Likewise, in *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U.S. 573, 109 S.Ct.

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[3] Until recently, there were no non-Christian Churches in Edmond. There is now the Unitarian Church and a Moslem prayer chapel.

3086, 106 L.Ed.2d 472 (1989) in allowing a menorah (a Jewish religious symbol) to remain on display outside a courthouse along with other secular Christmas symbols the Court said "the City's *overall* display must be understood as conveying the City's secular recognition of different traditions for celebrating the winter-holiday season." 492 U.S. at 620, 109 S.Ct. at ___, 106 L.Ed.2d at 511-12 (emphasis added).

The final prong of the *Lynch* test is whether the depiction fosters excessive entanglement of the Government with religion. There is *no* evidence of entanglement of the City with religion other than the fact of the cross being in the seal. There is no evidence that any church played any role in its inclusion or its continuation.

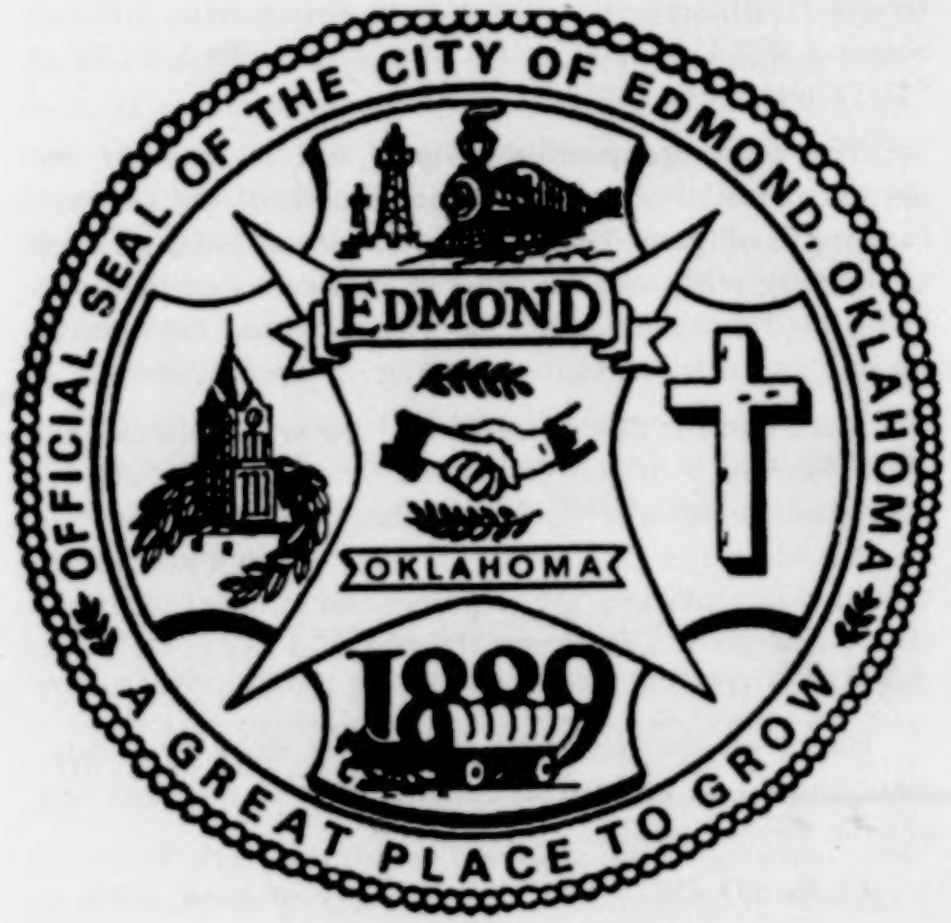
The Plaintiffs also contend that the seal violates Article II Section 5 of the Oklahoma Constitution. Without going into extensive analytical discussion, suffice it to say, based on the Oklahoma Supreme Court's interpretation of that provision, the seal does not violate Oklahoma law. *See Meyer v. Oklahoma City*, 496 P.2d 789 (1972), *cert. denied*, 409 U.S. 980, 93 S.Ct. 314, 34 L.Ed.2d 244 (1972).

Based on the foregoing, the Court finds that judgment should be entered in behalf of the Defendants and against each Plaintiff.

IT IS SO ORDERED this 1st day of June, 1994.

/s/ David L. Russell
DAVID L. RUSSELL
UNITED STATES DISTRICT JUDGE

APPENDIX "A"



UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

WAYNE ROBINSON; CURTIS BATTLES; WENDELL MILLER; MARTIN FELDMAN, Plaintiffs-Appellants, BARBARA ORZA, Plaintiff, v. CITY OF EDMOND, a Municipal corporation; RANDELL SHADID, individually and in his official capacity as Mayor of the City of Edmond; RON MERCER, KAY BICKHAM, GARY MOORE, in their official capacities as members of the City Counsel of the City of Edmond, Defendants-Appellees.	)	No. 94-6237

WAYNE ROBINSON; CURTIS BATTLES; WENDELL MILLER; MARTIN FELDMAN; BARBARA ORZA,

Plaintiffs-Appellants,

v.

No. 95-6008

CITY OF EDMOND, a Municipal corporation; RANDELL SHADID, individually and in his official capacity as Mayor of the City of Edmond; RON MERCER, individually and in his official capacity as a member of the City Council of the City of Edmond; KAY BICKHAM, individually and in her official capacity as a member of the City Counsel of the City of Edmond; GARY MOORE, in their official capacities as members of the City Counsel of the City of Edmond,

Defendants-Appellees.

ORDER

Filed November 6, 1995

Before ANDERSON, HOLLOWAY, and LUCERO, Circuit Judges.

Appellees' motion to stay the mandate in the captioned case pending application to the Supreme

Court for a writ of certiorari is granted. It is ordered that the issuance of the mandate is stayed until December 6, 1995. If, on or before that date, there is filed with the clerk of this court a notice from the Clerk of the Supreme Court that appellees have filed a timely petition for writ of certiorari in that court, the stay shall continue until final disposition in the Supreme Court.

Entered for the Court

PATRICK FISHER, Clerk

By /s/ Opal A. Carter
Opal A. Carter
Deputy Clerk
